

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adriana Lizarazo	Team: Team # 2	CCRB Case #: 201109710	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/22/2011 4:30 PM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 1/22/2013	EO SOL 1/22/2013	
Date/Time CV Reported Mon, 07/25/2011 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/27/2011 1:08 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POF Filastin Abedrabbo	23392	933550	052 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Amadeo Oktrova	26126	949413	PBBX		
Officer(s)	Allegation			Investigator Recommendation	
A.POF Filastin Abedrabbo	Discourtesy: PO Filastin Abedrabbo spoke obscenely and/or rudely to § 87(2)(b)				

Complaint Summary

On July 25, 2011, § 87(2)(b) filed this complaint with the Internal Affairs Bureau generating original log § 87(2)(b). This complaint was forwarded and received by the CCRB on July 27, 2011. On July 25, 2011, at approximately 4:30 PM, § 87(2)(b) called the police because her neighbors opened the fire hydrants and she did not have water in her apartment. § 87(2)(b) is a § 87(2)(b)-old female who only speaks Spanish and resides at § 87(2)(b) in the Bronx. A female and a male officer, identified through investigation as PO Filastine Abedrabbo of the 52nd Precinct and PO Amadeo Oktrova of the Patrol Borough Bronx, responded to the location and spoke to § 87(2)(b) in English. § 87(2)(b) could not understand most of what the officers told her; however, § 87(2)(b) understood that PO Abedrabbo told her to “shut up” and called her a “bitch” (**Allegation A**). One of § 87(2)(b)'s neighbors, who she did not wish to identify, was present during the incident and told § 87(2)(b) that PO Abedrabbo used other discourtesies towards § 87(2)(b) but refused to repeat what PO Abedrabbo said because she did not want to upset her. § 87(2)(b) was not issued a summons during this incident.

SPRINT § 87(2)(b) showed that Sector A responded to the location and that a summons was served at 4:29 PM. The 52nd Precinct roll call tour 3 on July 25, 2011, showed that PO Filastine Abedrabbo and PO Amadeo Oktrova were assigned to patrol sectors ABC D and worked from 12:00 PM until 8:35 PM. § 87(2)(b) described PO Abedrabbo as a white female in her early to mid-30's who is 5'2" tall, slim and has brown hair. PO Abedrabbo's photo was received and she matched the description provided by § 87(2)(b).

On July 28, 2011, the investigator explained both mediation and investigation to § 87(2)(b). § 87(2)(b) expressed her desire to mediate this complaint because she wants to tell the officer how she felt.

Results of preparing the case for mediation

On September 14, 2011, Tahira Delaine, in the Alternative Dispute Resolution (ADR) Unit, reviewed this case and put it into the mediation process. On September 26, 2011, Ms. Delaine received § 87(2)(b)'s Mediation Opt-Out Form and a letter written in Spanish; neither of which indicated how § 87(2)(b) wanted her complaint to be handled. Later on the same date, Mediation Coordinator Wendy Rodriguez-Figueroa contacted § 87(2)(b) to determine how she wanted to handle her complaint. At that time, § 87(2)(b) informed Ms. Rodriguez-Figueroa that wanted to close her case.

Ms. Delaine added an updated copy of PO Abedrabbo (last name has since been changed to Srour) CCRB history to the case file. She has not been named as a subject officer in any case since this case was filed.

Recommendation

§ 87(2)(g)



Mediation Supervisor:

Date:

Director of Mediation:

Date: